



POLICE DEPARTMENT

April 14, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 202203671 (Incident Date: May 30, 2022) involving Police Officer
Joesne Araujopassos, Tax No. 969488 (DADS No. 2023-29212 / PODS No. C-031487)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Joesne Araujopassos and has determined that his actions do not warrant discipline.

In this matter, police responded to a 911 call for a domestic assault in progress. The female caller reported that her male partner assaulted her. Both parties were on scene upon police arrival. As the officers were speaking to the male suspect, he walked away, crossed the street, and entered the driver side of a vehicle. Police Officer Araujopassos followed, stood outside the vehicle, and attempted to plead with the suspect to exit the vehicle. Instead of complying with the request, the suspect attempted to flee by turning on the vehicle and placing it in drive. In response, Police Officer Araujopassos entered the passenger side of the vehicle and physically attempted to prevent the suspect from driving off by engaging the emergency brake and grabbing the vehicle keys. The suspect continued to be non-compliant and grow more belligerent with the officers. At this point, Police Officer Araujopassos used strong language containing profanity in an attempt to de-escalate the situation and have the suspect exit the vehicle. He also told the other officers to utilize their Conducted Electrical Weapons to assist in ending the suspect's resistance.

In their analysis, CCRB concluded that the language used by Police Officer Araujopassos was discourteous and contained threats of force. They failed, however, to consider that these tactics were only utilized after multiple orders to comply were dismissed by the suspect. In fact, Police Officer Araujopassos' words were effective as the suspect exited the vehicle shortly thereafter. CCRB also found that Police Officer Araujopassos used excessive force when the suspect unexpectedly dove into the vehicle and reached towards a bag in the rear seat. Specifically, CCRB determined that when Police Officer Araujopassos grabbed the suspect's leg and held it over the top of the driver side door, that it was an improper use of force, despite no injury being

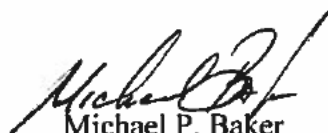
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inflicted. The use of force was reasonable and consistent to gain compliance of an uncooperative suspect and remove the immediate threat that the suspect was reaching towards a bag containing unknown contents. Furthermore, Police Officer Araujopassos's statement that he held the suspect's leg in place to keep him from going further into the car towards the bag was also consistent with the video footage. His perception of his actions, as described to CCRB, does not rise to the level of actionable misconduct.

Thus, the Police Commissioner intends to dismiss the charges and specifications in this matter and to impose no disciplinary action. Separate and apart, Police Officer Araujopassos will receive formalized training in tactics and the apprehension of suspects, with particular attention to suspects who enter vehicles during the arrest encounter.

Sincerely,

A handwritten signature in black ink, appearing to read "Michael P. Baker". The signature is stylized with a large, sweeping "M" and a long, horizontal stroke extending to the right.

Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Stuart London, Esq.



ERIC L. ADAMS
MAYOR

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Dr. MOHAMMAD KHALID
INTERIM CHAIR

April 15, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. PO Joesne Araujopassos 969488; DADS No.: 2023-29212

Dear Commissioner:

I am writing in response to the letter from Deputy Chief Michael Baker, dated April 14, 2025, informing the Civilian Complaint Review Board (hereinafter referred "CCRB") of your intent to dismiss the Charges and Specifications against PO Joesne Araujopassos and issue formalized training. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Michael Baker's notification.

Deputy Chief Baker stated that the Police Commissioner reviewed the recommendation and has determined that his actions do not warrant discipline. CCRB respectfully disagrees. The letter fails to acknowledge or analyze that PO Araujopassos was charged with a false statement that was amended for plea purposes. According to the NYPD Disciplinary Matrix, the presumptive penalty is termination. During PO Araujopassos official interview, he denied bending the civilian's leg over the door which is clearly captured on BWC Footage.

Furthermore, the letter characterizes PO Araujopassos discourtesy as "strong language" to de-escalate but PO Araujopassos commands were not de-escalatory. In fact, his statements of "Ill fuck you up and shut the fuck up" are quite the opposite. Additionally, PO Araujopassos also threatened the civilian with a use of taser in order to "gain compliance." Given the number of officers on the scene, PO Araujopassos' misconduct was not warranted. The letter also mentions that there was no injuries, but injury is not required under the Matrix for a non-lethal force, no injury.

While the CCRB acknowledges you are the final arbiter of discipline, it respectfully disagrees with your assessment and requests endorsement of the plea agreed upon by the CCRB and Respondent's counsel. Not only did the CCRB include the totality of circumstances in their analysis, but PO Araujopassos accepted responsibility, pled guilty and Trial Commissioner Vanessa Facio-Line fully endorsed the plea.

Respectfully submitted,

Andre D. Applewhite

p.p., Andre Applewhite, Chief Prosecutor
for Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board